

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25CV462727	John Navarro et al vs Amanda Navarro	Hearing: Demurrer Click to line 1 for Tentative Ruling; Court will prepare order.
LINE 2	26CV484278	EVERSHINE I, L.P. vs COM TAM THIEN HUONG et al	Hearing: Motion to Strike Click to lines 2 for Tentative ruling; Court will prepare order.
LINE 3	26CV484278	EVERSHINE I, L.P. vs COM TAM THIEN HUONG et al	Hearing: Demurrer Click to lines 2 for Tentative Ruling; Court will prepare order.
LINE 4	23CV415280	BIJAN HAGHIGHI vs City of Mountain View et al	Motion: Compel Click to Line 4 for Tentative Ruling; Court will prepare order.
LINE 5	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 5 for Tentative Ruling; Court will prepare order.
LINE 6	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 6 for Tentative Ruling; Court will prepare order.
LINE 7	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Admissions Deemed Admitted Click to Line 7 for Tentative Ruling; Court will prepare order.
LINE 8	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 8 for Tentative Ruling; Court will prepare order.
LINE 9	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 9 for Tentative Ruling; Court will prepare the order.
LINE 10	25CV474504	Adedayo Abioye vs Abraham Chapa et al	Motion: Compel Click to Line 10 for Tentative Ruling; Court will prepare the order.
LINE 11	22CV404562	Nick Miletak vs ManPowerGroup US, Inc	Motion: Vacate Click to Line 11 for Tentative Ruling; Court will prepare the order.
LINE 12	23CV416455	N. Charles Podaras vs Valerie Weirauch et al	Motion: Leave to File Click to Line 12 for Tentative Ruling; court to do order.
9:01 Calendar			
LINE 1	26CV445369	Calvary SPV I, LLC v. Sherryanne Mangliogot	Hearing on Opposition to Claim of Exemption Parties to appear and argue.

Line 1:.

Hearing on Demurrer

Case Name: *JOHN NAVARRO et.al. v. AMANDA NAVARRO*

Case No.: 25CV462727

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant, Amanda Navarro, demurs to the complaint on the grounds that (1) the Court lacks subject matter jurisdiction, and (2) the complaint fails to allege facts sufficient to support a cause of action for intentional infliction of emotional distress. (Notice of Demurrer at 3:5-12)

Defendant's demurrer came on for hearing on September 18, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

The real property at issue is located at 335 Avenida Nogales, San Jose, California 95123 , APN 464-07-046. ("Subject Property") The Subject Property was originally owned by John Navarro, Sr. and Ramona Navarro. John Navarro, Sr. is the father of Plaintiff John Navarro and Defendant Amanda Navarro. Ramona Navarro is the mother of both parties. Both John Navarro Sr. and Ramona Navarro are now deceased. (Complaint ¶¶ 4, 9)

When Ramona Navarro became ill in April 2024, Defendant told staff at Kaiser Santa Teresa and Vasona Rehabilitation Center that John Navarro and Clemons could not visit Ramona Navarro. Neither plaintiff was permitted to see Ramona before she died. (Complaint ¶ 9)

Defendant engaged in a pattern of forging signatures of both decedents, using fraudulent documents related to the Subject Property, obtaining a guardianship appointment, recording a declaration severing joint tenancy, and creating an invalid will, all to obtain control of the Subject Property and the decedent's assets. (Complaint ¶ 9)

Plaintiffs initiated this action on April 2, 2025, alleging causes of action for (1) intentional infliction of emotional distress, and (2) quiet title.

II. Legal Standard

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid.*) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is